

10. **Rule now general that executor must account for all profits.**—But all these refinements have long since been swept away (*b*); and the rule is now *universal*, that, whether the executor be solvent or insolvent, whether the money be part of the general assets or specifically bequeathed, whether it be lent upon security or employed in the way of trade, the executor shall account for the utmost actual profits to the testator's estate (*c*).

11. **Trustee using trust money in trade must account for it with 5 per cent. interest, or the actual profits.**—Where the money has been employed by breach of trust in trade, the *cestui que trust* has the option of taking the actual profits or of charging the executor with interest (*d*). And the executors cannot disguise the employment of the money in their business under the garb of a *loan* to one of themselves (*e*). And an executor who is a trader is considered to employ the money in trade, if he lodge it at his banker's and place it in his own name, for a merchant must generally keep a balance at his banker's, and this answers the purpose of his credit as much as if the money were his own (*f*).

12. **Executor charged with 4 per cent. interest only unless he made more.**—The rate of interest with which an executor is usually charged is 4 per cent. (*g*); but the rule holds only

(*b*) As to the former distinction, see *Newton v. Bennet*, 1 B. C. C. 361; *Adye v. Feuilliteau*, 1 Cox, 25; and as to the latter, see *Newton v. Bennet*, 1 B. C. C. 361.

(*c*) *Tebbs v. Carpenter*, 1 Mad. 304, per Sir T. Plumer; *Lee v. Lee*, 2 Vern. 548; *Adye v. Feuilliteau*, 1 Cox, 24; *Piety v. Stace*, 4 Ves. 622, per Lord Alvanley.

(*d*) *Heathcote v. Hulme*, 1 J. & W. 122; *Anon. case*, 2 Ves. 630, per Sir T. Clarke; *Docker v. Somes*, 2 M. & K. 655; *Ex parte Watson*, 2 V. & B. 414; *Brown v. Sansome*, 1 M'Clel. & Y. 427; *Robinson v. Robinson*, 1 De G. M. & G. 257; see *ante*, p. 276, 277.

(*e*) *Townend v. Townend*, 1 Giff. 201.

(*f*) *Treves v. Townshend*, 1 B. C. C. 284; *Moons v. De Bernales*, 1 Russ. 301; *In re Hilliard*, 1 Ves. jun. 90;

Sutton v. Sharp, 1 Russ. 146; *Rocke v. Hart*, 11 Ves. 61; but see *Browne v. Southouse*, 3 B. C. C. 107.

(*g*) See *Fletcher v. Green*, 33 Beav. 426; *Forbes v. Ross*, 2 Cox, 116; *Hall v. Hallet*, 1 Cox, 138; *Tebbs v. Carpenter*, 1 Mad. 306; *In re Hilliard*, 1 Ves. jun. 90; *Browne v. Southouse*, 3 B. C. C. 107; *Mosley v. Ward*, 11 Ves. 582; *Perkins v. Baynton*, 1 B. C. C. 375; *Treves v. Townshend*, 1 B. C. C. 386; *Hicks v. Hicks*, 3 Atk. 274; *Younge v. Combe*, 4 Ves. 101; *Rocke v. Hart*, 11 Ves. 58; *Hankey Garret*, 1 Ves. jun. 236; but see *Bird v. Lockey*, 2 Vern. 744, 4th point; *Carmichael v. Wilson*, 3 Moll. 79; *Attorney-General v. Alford*, 4 De G. M. & G. 843; *Johnson v. Prendergast*, 28 Beav. 480. [*Re Emmet's Estate*, 17 Ch. D. 142.]